

24. S-PR-0014071 In Re the Estate of Lear, Tammy C.

Missing Attachment 7 (factual basis for relief) to spousal property petition. See ¶ 7.

Petitioner response is requested: the petition request determination of succession to and ownership of certain LLC interests "including" certain real property interests of the LLCs. LLC members do not own LLC assets. *CSHV 1999 Harrison, LLC v. County of Alameda* (2023) 92 CalApp.5th 117, 139. Ownership or succession to properties owned by the LLC is not justiciable in a spousal property petition. The only assets of decedent and survivor identified in the petition are the LLC membership interests themselves.

Petitioner response is requested: the petition appears to request reformation of two deeds granting certain real properties to two LLCs. The forms of relief available through a spousal property petition do not include reformation of deeds.

25. S-PR-0014075 In Re the David Edward Cocreham Jr Trust

Appearance is required for hearing on petition to instruct trustee and to compel trustee account.

Missing notice of hearing. Missing 30 days' service of notice of hearing. Prob.C. § 17203. Service of the petition without notice of hearing is insufficient.

26. S-PR-0014076 In Re the Estate of Fortino, James William

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing relationship of person listed in ¶ 8 to decedent.

Missing relationship of petitioner to decedent (¶¶ 3g(2)(c) & 8).

Missing any grounds for waiver of bond.

Clarification is needed: petitioner included an attachment to the petition stating grounds for appointment as special administrator. Missing any prayer for appointment of special administrator (caption; ¶¶ 2b(4) & 3g(3)). Special administration is intended to be temporary and serve "immediate . . . preservation of the estate." Prob.C. § 8540; see also § 8546(a). It is not a substitute for general estate administration.